

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 24-18

ACCESS ONE TRANSPORT, INC.
Complainant,

v.

CMA CGM S.A.
Respondent.

JOINT STATUS REPORT

As required by the initial order herein, Complainant Access One Transport, Inc. (“Access One”) and Respondent CMA CGM S.A. (“CMA”) submit their joint status report:

On May 30, 2024 counsel for the parties met and conferred for the purposes of completing this joint status report. As required by the initial order and 46 CFR §502.414(h) the parties discussed, initial disclosures, expert witnesses, potential discovery disputes, and the use of other documents or techniques which may assist with limiting discovery. Per the Commission’s notice, the initial decision in this matter must be issued no later than April 28, 2025. Also per the initial order and 46 CFR §502.141(g) discovery should be completed by October 18, 2024 (150 days from the date of service of Respondent’s answer) and the parties were ordered to confer with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”).

A. **CADRS**: The parties had a video preliminary conference with CADRS on June 3, 2024. At present, the parties believe initial settlement discussions can occur directly among counsel. The parties do not rule out a future formal mediation by CADRS or private mediation.

B. **Stipulation to continue the current discovery cut off date**: The current discovery cut-off date is October 18, 2024. The parties jointly request the discovery cut-off be continued to November 27, 2024. It is the parties' intention to voluntarily exchange documents no later than June 30, 2024 before any exchange of discovery. It is the hope that the exchange of documents can facilitate the streamlining of the discovery process. Further both professional and personal calendar conflicts will impact the ability to conduct discovery through the end of August 2024. Continuance of discovery to this date will not impact the ability to issue an initial decision before April 28, 2025.

C. **Proposed dates**: Provided the request to extend the discovery cut-off to November 27, 2024 is granted the parties propose the following schedule:

1. Initial Disclosure exchange to be completed no later than June 5, 2024.
2. In an attempt to potentially narrow discovery in this matter, the parties discussed the informally producing documents which should help the parties focus formal discovery requests moving forward. The parties anticipate the informal exchange no later than June 30, 2024. The parties are aware of their obligations to diligently move this case towards resolution. As such, the parties will endeavor to serve initial written discovery no later than July 31, 2024. Responses to written discovery will be due thirty days after service unless otherwise stipulated among the parties. The parties do not anticipate any discovery issues at this time. The parties also stipulate that any document may be produced in PDF format in lieu of any native format.

3. The parties discussed the potential need for a protective order to maintain confidentiality of documents and information. It is unknown if an order is needed at this time. Should a protective order be needed the parties will cooperate and file an appropriate motion and order.

4. The parties anticipate that depositions will commence after September 1, 2024. Depositions may be conducted virtually.

5. No later than October 1, 2024, the parties shall disclose their intention to use expert witnesses in this matter including field of study and possible topics. If experts are disclosed, thereafter, a simultaneous exchange of expert reports will occur on October 25, 2024.

6. Rebuttal witness reports due November 8, 2024.

7. Discovery cut off: November 27, 2024.

8. The parties will attempt to streamline discovery and use alternative methods to present evidence, such as stipulations etc., but otherwise to do not anticipate the need to limit the amount of discovery allowed under applicable regulations or as the parties may bring to the attention of this tribunal if necessary.

9. Complainant's prehearing statement due February 18, 2025.

10. Respondent's prehearing statement (if not joint) due March 4, 2025.

11. Proposed date of Prehearing conference March 11, 2025.

12. Further briefs and hearing, date, location and duration to be addressed at the Prehearing conference. It is anticipated that two or three days of hearing will be necessary.

Date: June 3, 2024

Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that on June 3, 2024, the foregoing JOINT STATUS REPORT has been served upon all interested persons and parties by electronic means pursuant to the below list.

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